

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jenzo Duque	Team: Squad #09	CCRB Case #: 201804763	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 06/12/2018 1:20 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/12/2019	Precinct: 47		
Date/Time CV Reported Thu, 06/14/2018 3:28 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 06/14/2018 3:28 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Irvin Saenz	22055	959959	047 PCT
2. POF Gladys Modesto	27516	948251	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Gladys Modesto	Abuse: Police Officer Gladys Modesto threatened to damage § 87(2)(b)'s property.	A . Substantiated
B . POM Irvin Saenz	Abuse: Police Officer Irvin Saenz threatened to damage § 87(2)(b)'s property.	B . Substantiated
C . POF Gladys Modesto	Abuse: Police Officer Gladys Modesto entered § 87(2)(b) in the Bronx.	C . Substantiated
D . POM Irvin Saenz	Abuse: Police Officer Irvin Saenz entered § 87(2)(b) in the Bronx.	D . Substantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via phone on June 14, 2018.

On June 12, 2018, at approximately 1:20 p.m., at § 87(2)(b) in the Bronx, Police Officer Gladys Modesto and Police Officer Irvin Saenz knocked on § 87(2)(b)'s door and § 87(2)(b) partially opened it. PO Modesto and PO Saenz stated the location landlord, § 87(2)(b) possessed a court order stating he needed to enter the residence to conduct emergency repairs. § 87(2)(b) called her mother, § 87(2)(b) who objected to the officers' entry. PO Modesto and PO Saenz then allegedly stated they would "knock down" the door if § 87(2)(b) did not allow the officers and § 87(2)(b) to enter (**Allegation A: Abuse of Authority, substantiated; Allegation B: Abuse of Authority, substantiated**). § 87(2)(b) instructed § 87(2)(b) to allow the officers to enter. PO Modesto and PO Saenz then entered the residence (**Allegation C: Abuse of Authority, substantiated; Allegation D: Abuse of Authority, substantiated**) with § 87(2)(b) and escorted him throughout the location as he conducted repairs.

§ 87(2)(b) provided video footage for this incident. The video footage is 25:00 long § 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: PO Gladys Modesto threatened to damage § 87(2)(b)'s property.

Allegation (B) Abuse of Authority: PO Irvin Saenz threatened to damage § 87(2)(b)'s property.

Allegation (C) Abuse of Authority: PO Gladys Modesto entered § 87(2)(b) in the Bronx.

Allegation (D) Abuse of Authority: PO Irvin Saenz entered § 87(2)(b) in the Bronx.

§ 87(2)(g)

It is undisputed that PO Modesto and PO Saenz arrived at § 87(2)(b) with § 87(2)(b) and an Order to Show Cause (OTSC). PO Modesto then stated the officers would knock down the door if the occupant, § 87(2)(b) § 87(2)(b) did not open the door, and the officers entered the residence.

An OTSC is a type of civil court motion that requires one or more parties to justify why a court should order relief to said party (known as the moving party) for a specific action. Motion papers must be served on all relevant parties, and a party served with motion papers for an OTSC may prepare papers to oppose the motion. The moving party is then entitled to submit papers in response to the opposing party's papers. On the hearing date of the motion, all parties must convene in court and a judge will decide the motion. In this incident, § 87(2)(b) (the moving party) served motion papers for an OTSC to § 87(2)(b) stating the relief § 87(2)(b) requested was to enter the residence to conduct emergency repairs.

According to § 87(2)(b)'s verified statement (Board Review 01), before she signed a rental agreement with § 87(2)(b) he informed her that an additional unit existed on the property, behind the private home. § 87(2)(b) also stated that previous tenants shared utilities with the tenant of the additional unit. § 87(2)(b) told § 87(2)(b) she could not share utilities while

participating in NYCHA's Housing Choice Voucher Program, and they agreed she would be charged utilities independently. In February 2018, § 87(2)(b) learned that a shared meter supplied electricity across the two residences through a ConEdison inspection. § 87(2)(b) informed § 87(2)(b) she would not share utilities with the other tenant. § 87(2)(b) then began cutting power from the additional unit.

On the incident date, when § 87(2)(b) partially opened the door, § 87(2)(b) had already called § 87(2)(b) via FaceTime so that she could see the officers while speaking with them. PO Modesto provided § 87(2)(b) with court documents, determined via investigation to be an OTSC, but neither she nor § 87(2)(b) could review it, given the circumstances. PO Modesto then stated if § 87(2)(b) did not allow them to enter, they would knock down the door. § 87(2)(b) asked PO Modesto and PO Saenz if they could wait for her fiancé to arrive before entering because § 87(2)(b) is a minor. The officers waited approximately 10 minutes before reiterating they and § 87(2)(b) needed to enter, and § 87(2)(b) then instructed § 87(2)(b) to allow the officers and § 87(2)(b) to enter the residence. Upon their entry, § 87(2)(b) instructed § 87(2)(b) to record video footage of the officers' actions. § 87(2)(b) hung up the FaceTime call, and from that point on in time, § 87(2)(b) did not witness the incident.

§ 87(2)(g)
When § 87(2)(b) first observed police officers outside the residence, she called § 87(2)(b) via cell phone. § 87(2)(b) then heard a knock at the door and § 87(2)(b) instructed her to partially open it. When § 87(2)(b) partially opened the door, she observed PO Modesto, PO Saenz, and § 87(2)(b) standing outside, and PO Modesto stated § 87(2)(b) needed to conduct emergency repairs inside the residence. § 87(2)(b) instructed § 87(2)(b) to tell the officers that they could not enter the residence. PO Modesto then presented § 87(2)(b) with an OTSC. § 87(2)(b) instructed § 87(2)(b) to call her via FaceTime so she could speak with the officers. § 87(2)(b) told the officers she did not want them to enter the residence because § 87(2)(b) is a minor. When § 87(2)(b) objected to § 87(2)(b) and the officers entering, PO Modesto stated if § 87(2)(b) did not allow them to enter, they would knock down the door. § 87(2)(b) then instructed § 87(2)(b) to allow the officers and § 87(2)(b) to enter the residence. When § 87(2)(b) learned that § 87(2)(b) would conduct repairs in the basement, she objected, but at no point did anyone else present object to what the officers were doing. The officers did not enter any other area of the residence, nor did they touch anything while inside the residence. The officers only escorted § 87(2)(b) through the house as he made repairs.

According to § 87(2)(b)'s phone statement to CCRB (Board Review 03), § 87(2)(b) entered the residence and conducted repairs deemed necessary by NYCHA. § 87(2)(b) obtained an OTSC to gain entry to the location and he called the NYPD to assist him in its execution. PO Modesto and PO Saenz did not threaten to knock down the door. PO Modesto and PO Saenz escorted § 87(2)(b) into the residence and accompanied him as he conducted repairs in the basement and in the kitchen. PO Modesto and PO Saenz did not enter any other area of the residence.

In PO Modesto's statement to the CCRB (Board Review 04), PO Modesto and PO Saenz responded to a call from dispatch regarding a code 10-39: potential threat or harassment issue. The officers received no other additional information between receiving the call and responding on scene; however, PO Modesto believed that the call was regarding a landlord-tenant dispute. When PO Modesto and PO Saenz arrived at the location, § 87(2)(b) identified himself as the

landlord and presented the officers with a court order, determined via investigation to be an OTSC. PO Modesto and PO Saenz reviewed the OTSC, which had been filed on the incident date. § 87(2)(b) possessed more than one copy of the OTSC, including a copy for § 87(2)(b). The OTSC stated § 87(2)(b) needed to conduct emergency repairs in the residence. § 87(2)(b) stated conducting emergency repairs entailed replacing the stove. PO Modesto did not recall whether the court order stated that conducting emergency repairs entailed replacing the stove. To PO Modesto's knowledge, conducting emergency repairs did not entail replacing the stove. PO Modesto acknowledged she was unfamiliar with an OTSC and assumed the fulfillment date on it referred to how much time § 87(2)(b) had to conduct emergency repairs. When shown a copy of the OTSC given to § 87(2)(b) (Board Review 05), PO Modesto stated § 87(2)(b) presented the officers with a different copy of the OTSC, but could not articulate specifically what distinguished the copies. § 87(2)(b) told the officers there was an additional unit behind the residence, but at no point did she, PO Saenz, or § 87(2)(b) access the additional unit. § 87(2)(b) told the officers that § 87(2)(b) had cut power to the additional unit in the past, but PO Modesto did not recall if § 87(2)(b) told the officers she had done so on the incident date. PO Modesto believed that the emergency repairs were related to the power cut from the rear unit based on § 87(2)(b)'s statements. § 87(2)(b) did not specify the nature of the emergency in the rear unit.

The officers and § 87(2)(b) then knocked on the door, which was answered by § 87(2)(b). PO Modesto believed § 87(2)(b) to be over 18 years old. PO Modesto told § 87(2)(b) to call her mother and inform her that § 87(2)(b) possessed an OTSC allowing him to enter the residence. PO Modesto showed a copy of the OTSC to § 87(2)(b) and she did not review it. PO Modesto, then stated, "We don't want to take the door down." PO Modesto believed § 87(2)(b) had lawful access to the residence and needed to conduct an emergency repair, so he could "take down" the door with tools or pick the lock if he so desired. PO Modesto further clarified that her usage of the word "we" was in reference to § 87(2)(b)'s ability to take down the door, and that she and PO Saenz would not do so themselves. PO Modesto made the statement to both § 87(2)(b) and § 87(2)(b). PO Modesto convinced § 87(2)(b) to allow the officers and § 87(2)(b) to enter. PO Modesto, PO Saenz, and § 87(2)(b) then went downstairs to the basement, followed by § 87(2)(b) who recorded video footage. After § 87(2)(b) conducted repairs in the basement, the officers, § 87(2)(b) and § 87(2)(b) returned upstairs, where § 87(2)(b) replaced the stove. The officers then left.

In PO Saenz's statement to the CCRB (Board Review 06), PO Saenz and PO Modesto responded to a call from dispatch regarding a landlord-tenant dispute. PO Saenz did not recall if dispatch provided any other information between receiving the call and responding on scene. When the officers arrived at the location, they spoke with § 87(2)(b) and reviewed the court order, determined via investigation to be an OTSC, that he possessed. § 87(2)(b) told the officers he needed police assistance to conduct repairs because § 87(2)(b) had not allowed him to enter the residence. The OTSC stated that § 87(2)(b) did not need to be present for § 87(2)(b) to conduct the repairs. § 87(2)(b) did not tell PO Saenz when he went to court and obtained the OTSC, nor did PO Saenz know when the OTSC was issued. PO Saenz did not recall what specific repairs § 87(2)(b) needed to conduct. § 87(2)(b) told PO Saenz the repairs entailed an electrical box and a gas line for a stove. PO Saenz did not recall if the OTSC specifically listed that repairs needed to be conducted to the electrical box. PO Saenz did not recall the specific reason § 87(2)(b) needed to make repairs to the electrical box, but he acknowledged that § 87(2)(b) had stated such. PO Saenz was not aware of an additional unit on the property. PO Saenz and PO

Modesto never saw an additional unit on the property. When shown a copy of the OTSC given to § 87(2)(b) (Board Review 05), PO Saenz stated it was the same document § 87(2)(b) provided to him upon arriving on scene. PO Saenz stated the fulfillment date on the OTSC referred to how much time § 87(2)(b) had to conduct emergency repairs. PO Saenz also clarified that § 87(2)(b) told him the repairs he needed to conduct were emergency-related or urgent, but did not recall at what point in time § 87(2)(b) told him so. § 87(2)(b) told PO Saenz that he needed access to the electrical box because § 87(2)(b) had cut power. PO Saenz did not recall if § 87(2)(b) specified the power was for the additional unit. PO Saenz did not recall if § 87(2)(b) indicated that § 87(2)(b) cutting power had put a tenant at the location in danger.

PO Saenz believed § 87(2)(b) to be 16 or 17 years old. § 87(2)(b) told § 87(2)(b) not to allow anyone to enter the residence. § 87(2)(b) asked the officers if they could wait for her or an individual PO Saenz believed to be § 87(2)(b)'s husband or boyfriend to arrive before entering. PO Saenz did not recall PO Modesto stating the door would be taken down. PO Saenz further clarified that he and PO Modesto likely stated they would "take the door", but that the statement was in reference to § 87(2)(b)'s ability to use a key to enter himself, and not that he or PO Modesto would damage the door. PO Saenz believed that § 87(2)(b) told § 87(2)(b) to let the officers and § 87(2)(b) enter, although he acknowledged he did not hear § 87(2)(b) state so specifically.

In People v. Hammett, 6 N.Y.S.3d 107 (Board Review 11), the guidelines for the application of the emergency doctrine in a warrantless entry are stated as follows: "(1) The police must have a reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property. (2) The search must not be primarily motivated by the intent to arrest and seize evidence. (3) There must be reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched." However, the United States Supreme Court has determined that the second guideline, regarding police intent, is no longer relevant under the Fourth Amendment.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation A** and **Allegation B** be closed as **substantiated**.

§ 87(2)(g)

it is recommended that **Allegation C** and **Allegation D** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two CCRB complaints and has been named a victim in two allegations (Board Review 08):
 - § 87(2)(b)
 -
- PO Irvin Saenz has been a member of service for two years and this is the first CCRB complaint to which he has been a subject.
- PO Gladys Modesto has been a member of service for nine years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of September 5, 2018, the New York city Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (Board Review 10).

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date